

CALLISON v. ORTIZ

20CV45077

PLAINTIFF'S MOTIONS TO COMPEL DISCOVERY

This case involves an allegedly broken promise to use the equity from the sale of real property to reduce an existing judgment. In 2017, plaintiff Dan Callison secured a stipulated judgment against co-defendant Dan Riordan for \$965,000.00. In 2019, defendants Rose Ortiz and Dan Riordan executed an Assignment of Equity in favor of plaintiff, pledging "in reduction of that certain Judgment all right title and interest in any and all equity which they may hold in 2235 Skunk Ranch Road, Murphys." In 2020, defendant Ortiz transferred by way of grant deed the subject property, and reportedly failed to tender over to plaintiff any equity from that transaction – which plaintiff estimates to be in the range of \$200,000.00.

Before the Court this day are eight (8) discovery motions, including Form Interrogatories, Special Interrogatories, Request for Production of Documents, and Requests for Admission to each defendant. All eight (8) sets of discovery were mail-served to defense counsel 03/04/22. Defendants did not respond. On 04/19/22, counsel for plaintiff inquired of the status of responses, to no avail.

Since defense counsel has appeared at case management conferences, the silence in the face of clear discovery obligations seems unusual. This Court would like to believe that the silence is explainable, but for present purposes all this Court has is a prima facie display of a discovery abuse. The motion to compel a substantive, verified, objection-free response to the Form Interrogatories, Special Interrogatories, and Request for Production of Documents is GRANTED. Defendant is ordered to comply within 20 days. With regard to the RFAs, so long as plaintiff's counsel confirms that substantially-compliant responses have not been received prior to the hearing, the request to have those matters deemed admitted is GRANTED. Pursuant to CCP §2023.030(a) and CRC 3.1348(a) (giving to the absence of opposition), defendants are each ordered to reimburse plaintiff \$1,000 (representing 0.5 hrs for each motion, plus filing fee) within the same 20 days.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling, and to serve defense counsel by personal delivery to the office.

HARDISTY v. LAGUNA GOLD MORTGAGE

19CV44041

DEFENDANT’S MOTION TO VACATE ARBITRATION AWARD

This is a breach of contract action involving satisfaction of encumbrances as part of a bankruptcy proceeding. The dispute was referred to arbitration. Before the Court is a defense motion to vacate the arbitration award. There is no opposition.

Pursuant to Calaveras County Superior Court Local Rule 3.3.7 (adopted 1/1/18), “all matters noticed for the Law & Motion calendar shall include” specified language in the Notice of Motion, and “failure to include this language in the notice may be a basis for the Court to deny the motion.” Based on defendant’s failure to include the required language, the motion is **DENIED**, without prejudice to refile, to the extent it otherwise is timely and appropriate pursuant to relevant statutes.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal order is required.